

Superior Court of California, County of Tuolumne

Consolidated Calendar

Hon: Hallie Gorman Campbell

Department 2

June 3, 2026

8:30 am

DA Case #

Date Filed

4 CV68350

Edward Bolitho vs. Roger Perkins

04/22/2026

Edward Bolitho

Attorney: Gary Dambacher

Roger Perkins

Petition Hearing - Other

Cancel and Release Mechanics Lien

04/22/2026 Petition

File Tracking

04/24/2026 High Density

This is a special proceeding to release a mechanics lien. Pursuant to Civil Code §8486, petitioner is required to serve both the verified petition and a notice of hearing “on the claimant at least 15 days before the hearing,” and the hearing shall be set “no more than 30 days after the filing of the petition.” In other words, petitioner had 15 days (give or take) to effectuate service of the petition – and at present there is no proof of service in the court file. Although it is customary to file the proof of service at least five court days before the date appointed for the hearing (see CRC 3.1300), the general rule is that proof of service “shall be to the satisfaction of the court at or before the hearing.” See CCP §684.210; Probate Code §1260(a). In these particular cases, “the issue of compliance with the service and date for hearing requirements are deemed controverted [and] the petitioner has the burden of proof as to the issue of compliance with the service and date for hearing requirements.” Civil Code §8488(b). As such, it is of no consequence that the proof of service was filed in advance of the hearing since it must be addressed substantively at the hearing either way.

If the claimant has not commenced an action to enforce the lien within 90 days after recordation, the claim of lien is unenforceable. Civil Code §8460(a).

If a continuance is necessary, the trial court is only authorized to permit a one-time 30-day continuance unless both parties expressly agree to waive time. Civil Code §8486(a).